

An Act

ENROLLED SENATE
BILL NO. 423

By: Rader of the Senate

and

Caldwell (Chad) of the
House

An Act relating to medical records; amending 76 O.S. 2021, Section 19, which relates to access to medical records; modifying applicability of certain provisions; eliminating certain duties of health care providers; authorizing imposition of certain fees; modifying certain fee limits; defining terms; making certain acts unlawful; providing administrative penalties; providing for civil relief; and providing an effective date.

SUBJECT: Medical records

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 76 O.S. 2021, Section 19, is amended to read as follows:

Section 19. A. 1. Any person who is or has been a patient of a ~~doctor, hospital or other medical institution~~ health care provider or health care facility, or such person's personal representative, shall, as provided under 45 C.F.R., Section 164.502, be entitled, upon request, to obtain access to the information contained in the patient's medical records including any x-ray or other photograph or image, pathology slide, or the patient's medical bills.

2. Disclosure of the information described in paragraph 1 of this subsection regarding a deceased patient shall require either a court order or a written release of an executor, administrator, or

personal representative appointed by the court, or if there is no such appointment, by the spouse of the patient or, if none, by any responsible member of the family of the patient. As used in this paragraph, "responsible family member" shall mean the parent, adult child, adult sibling, or other adult relative who was actively involved in providing care to or monitoring the care of the patient as verified by the ~~doctor, hospital or other medical institution~~ health care provider or health care facility responsible for the care and treatment of such person.

~~2. Any person who is or has been a patient of a doctor, hospital or other medical institution shall be furnished copies of all medical records including any x-ray, other photograph or image, pathology slide or all medical bills pertaining to that person's case upon request and upon the tender of the expenses enumerated in this paragraph. The cost of each copy to such person or to the personal representative, spouse or responsible family member of such person, not including any x-ray or other photograph or image or pathology slide, shall be fifty cents (\$0.50) for each page.~~

3. A health care provider or health care facility may impose a reasonable, cost-based fee when patients or their personal representatives request copies of medical records; provided, that the fee includes only the cost of applicable expenses listed in 42 C.F.R., Section 164.524(c) (4).

4. Requests for medical records and medical bills from, or directed to, attorneys, insurance companies, other third parties, and by way of subpoena shall be charged a base fee of ~~Twenty Dollars (\$20.00)~~ not more than Twenty-five Dollars (\$25.00) in addition to the a per page charges required pursuant to this section fee of:

- a. not more than seventy cents (\$0.70) for paper copies, plus postage or delivery fee, or
- b. not more than forty cents (\$0.40) for electronic copies.

The base fee shall be charged regardless of whether any records related to the request are located. A fee of not more than Fifteen Dollars (\$15.00) shall be charged if a certification or an affidavit by the provider regarding the authenticity of the medical records or

~~bills is requested. The physician, hospital or other medical professionals and institutions, or their business associates as the term is defined in Section 160.103 of Title 45 of the United States Code of Federal Regulations shall produce the records in digital form at the rate of thirty cents (\$0.30) per page if:~~

- ~~a. the entire request can be reproduced from an electronic health record system,~~
- ~~b. the records are specifically requested to be delivered in electronic format, and~~
- ~~c. the records can be delivered electronically.~~

~~If a provider or business associate transmits the records electronically, no postage shall be charged but a delivery charge shall apply. In no event shall a charge for the reproduction of electronically stored and delivered medical records pursuant to this paragraph exceed Two Hundred Dollars (\$200.00) Two Hundred Seventy Dollars (\$270.00) plus postage or delivery fee. The cost of each printed x-ray, other photograph, or image to such person or to the legal representative of such person shall be not more than Fifteen Dollars (\$15.00). If the x-ray, other photograph, or image is provided on a CD/DVD or other electronic media, the fee shall be Twenty Dollars (\$20.00) not more than Twenty-five Dollars (\$25.00) per CD/DVD or other electronic media. The physician, hospital, or other medical professionals and institutions, or their business associates as the term is defined in Section 160.103 of Title 45 of the United States Code of Federal Regulations, shall not charge a person who requests their own record a fee for searching, retrieving, reviewing, and preparing medical records of the person. No mailing fee shall be charged for copies provided by facsimile. All requests for medical records made pursuant to this subsection shall be subject to the fees described in this section regardless of where the copies or electronic versions of such records are actually produced.~~

~~3.~~ 5. The provisions of ~~paragraphs 1 and 2~~ of this subsection shall not apply to:

- a. psychological, psychiatric, mental health, or substance abuse treatment records. In the case of

psychological, psychiatric, mental health, or substance abuse treatment records, access to information contained in the records shall be obtained pursuant to Section 1-109 of Title 43A of the Oklahoma Statutes.

~~4. The provisions of paragraphs 1 and 2 of this subsection shall not apply to, and~~

b. requests for medical records made by the Disability Determination Division of the State Department of Rehabilitation Services. The fee for such requests shall be at a rate allowed by the Social Security Administration.

B. 1. In cases involving a claim for personal injury or death against any practitioner of the healing arts or a licensed hospital, or a nursing facility ~~or nursing home~~ licensed pursuant to Section 1-1903 of Title 63 of the Oklahoma Statutes arising out of patient care, where any person has placed the physical or mental condition of that person in issue by the commencement of any action, proceeding, or suit for damages, or where any person has placed in issue the physical or mental condition of any other person or deceased person by or through whom the person rightfully claims, that person shall be deemed to waive any privilege granted by law concerning any communication made to a physician or health care provider with reference to any physical or mental condition or any knowledge obtained by the physician or health care provider by personal examination of the patient; provided that, before any communication, medical or hospital record, or testimony is admitted in evidence in any proceeding, it must be material and relevant to an issue therein, according to existing rules of evidence. Psychological, psychiatric, mental health, and substance abuse treatment records and information from psychological, psychiatric, mental health, and substance abuse treatment practitioners may only be obtained provided the requirements of Section 1-109 of Title 43A of the Oklahoma Statutes are met.

2. Any person who obtains any document pursuant to the provisions of this section shall provide copies of the document to any opposing party in the proceeding upon payment of the expense of copying the document pursuant to the provisions of this section.

C. This section shall not apply to the records of an inmate in a correctional institution when the correctional institution believes the release of such information to be a threat to the safety or security of the inmate or the institution.

D. 1. As used in this section, the terms "covered entity" and "protected health information" shall have the same meaning as provided under the Health Insurance Portability and Accountability Act of 1996 (HIPAA).

2. It shall be unlawful for a covered entity to use or disclose protected health information except as authorized under HIPAA.

3. Intentional violation of paragraph 2 of this subsection shall be deemed unprofessional conduct by the covered entity's licensure board or regulatory agency if applicable and subject to mandatory license revocation.

4. If a covered entity believes a violation of paragraph 2 of this subsection has occurred or will occur in relation to a request for medical records, the covered entity may apply to a court of competent jurisdiction for relief and the court shall award appropriate relief including, but not limited to, temporary, preliminary, or permanent injunctive relief.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____